



CHAPTER li.

An Act to provide for the transfer to the mayor aldermen and burgesses of the borough of Blackpool of the undertaking of the Blackpool and Fleetwood Tramroad Company and to empower the said mayor aldermen and burgesses to construct additional tramways and a street improvement and for other purposes.

A.D. 1919.

[15th August 1919.]

WHEREAS the mayor aldermen and burgesses of the borough of Blackpool (in this Act called "the Corporation") are the owners of and are working an extensive system of tramways:

And whereas the Blackpool and Fleetwood Tramroad Company who were incorporated by the Blackpool and Fleetwood Tramroad Act 1896 and upon whom further powers were conferred by the Blackpool and Fleetwood Tramroad Act 1898 are the owners of an undertaking which includes a tramroad and a tramway constructed in pursuance of the powers conferred upon them by the said Act of 1896 and the greater part of their undertaking is situate in the borough and the company are also lessees of part of the Corporation's tramways:

And whereas by an agreement made between the company and the Corporation the company have agreed to transfer their undertaking to the Corporation upon and subject to the terms and conditions mentioned in this Act and it is expedient that the undertaking be transferred accordingly:

And whereas it is expedient to empower the Corporation to construct additional tramways and a street improvement in the borough:

And whereas it is expedient that the other provisions contained in this Act be enacted:

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And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For and in connexion with the construction of the	£
tramways authorised by this Act - - - -	7,400
For and in connexion with the electrical equip-	
ment of those tramways. - - - -	1,100
For and in connexion with the purchase of lands for	
and the construction of the street improvement	
authorised by this Act - - - -	7,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

1.—(1) This Act may be cited as the Blackpool Improvement Act 1919.

(2) The Blackpool Improvement Acts 1853 to 1917 and this Act together with the provisions of the Blackpool and

Short and
collective
titles.

Fleetwood Tramroad Acts 1896 and 1898 (other than those mentioned in the Third Schedule to this Act) may be cited as the Blackpool Improvement Acts 1853 to 1919. A.D. 1919.

2. This Act is divided into Parts as follows (that is to say):— Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Purchase of Company's Undertaking.

Part III.—New Tramways.

Part IV.—Street Improvement.

Part V.—Financial and Miscellaneous Provisions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Lands Clauses Acts with the following exceptions and modifications:—

(A) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;

(B) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section;

(C) All claims for compensation made upon the Corporation under this Act or any Act incorporated herewith shall if the person claiming has no greater interest in the land in respect of which compensation is claimed than as tenant from year to year or as a leaseholder for any term of which not more than eighteen months remain unexpired at the time at which the claim is made be determined in manner provided by section 121 of the Lands Clauses Consolidation Act 1845;

(D) Any question of disputed compensation under this Act or any Act incorporated herewith (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Corporation and the person claiming the compensation or in default

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of such agreement appointed by the Board of Trade on the application of either party :

- (2) Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 :

Provided that the said section 19 shall be read and have effect as if the words "but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages" were omitted from that section.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

- (A) "The borough" means the county borough of Blackpool ;
- (B) "The Corporation" means the mayor aldermen and burgesses of the borough of Blackpool ;
- (C) "The borough fund" "the borough rate" "the district fund" and "the general district rate" mean respectively the borough fund the borough rate the district fund and the general district rate of the borough ;
- (D) "The company" means the Blackpool and Fleetwood Tramroad Company ;
- (E) "The First Schedule" "the Second Schedule" and "the Third Schedule" mean respectively the First Schedule the Second Schedule and the Third Schedule to this Act ;
- (F) "The tribunal" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred ;
- (G) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment

of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

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(H) "The council" means the urban district council of Fleetwood.

PART II.

PURCHASE OF COMPANY'S UNDERTAKING.

5.—(1) The company shall sell to the Corporation and the Corporation shall purchase the company's undertaking at the price and upon and subject to the terms and conditions stated in the First Schedule and the provisions of that schedule shall be binding upon the company and the Corporation and shall be carried into effect subject to such modifications (if any) as may be agreed between them in writing under their respective common seals.

Purchase of
company's
undertaking.

(2) The sale of the company's undertaking shall be carried into effect by a deed which may be in the form set forth in the Second Schedule or to the like effect or in such other form as may be agreed between the company and the Corporation and on the execution of the deed by the company the undertaking property and assets of the company (except the assets excluded from the sale under the provisions contained in the First Schedule) shall by virtue of the deed and of this Act be transferred to and become vested in the Corporation and such transfer and vesting are referred to in this Act as "the transfer" and the date upon which the transfer shall take effect is referred to in this Act as "the day of transfer."

6. The debentures of the company outstanding at the day of transfer and the interests accruing thereon after that day shall thereafter continue to be a charge on the undertaking of the company in the hands of the Corporation to the same extent and with the same incidents as if this Act had not been passed but with the substitution of the Corporation for the company in respect of such debentures.

Debentures
to continue
charge on
transferred
undertaking.

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Redemption
of com-
pany's de-
bentures.

7.—(1) The Corporation may by agreement with the holder of any of the debentures of the company at any time substitute for the debenture so held by him any mortgage or other security of the Corporation or pay off the amount secured by such debenture and redeem the security with moneys borrowed or raised under this Act and the holder of any such debenture whether or not he is a trustee or under any disability may agree with the Corporation to accept any mortgage or other security of the Corporation in lieu of money in consideration for his debenture.

(2) Any security under this section substituted for any debenture shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in on or subject to which the debenture was held immediately before the substitution and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the debenture and every such deed will instrument or disposition shall take effect with reference to the whole or a proportionate part (as the case may be) of the substituted security.

(3) The Corporation shall make provision for the extinction of the company's debentures and of any mortgage or other security of the Corporation substituted for the same by means of a sinking fund to be formed and maintained in accordance with the provisions of the Blackpool Improvement Act 1905 relating to the formation of sinking funds for the repayment of principal moneys so far as those provisions are applicable so as to purchase and extinguish the said debentures or security within a period of thirty years from the day of transfer.

Actions &c.
not to abate
and penalties
to be recover-
able.

8.—(1) Subject as between the Corporation and the company to the provisions contained in the First Schedule and without prejudice to any remedy over by the Corporation against the company no action suit prosecution or other proceeding whatsoever commenced either for or against the company shall abate or be discontinued or prejudicially affected by reason of the transfer but the same shall continue and take effect either in favour of or against the Corporation in the same manner in all respects as the same would have continued and taken effect in relation to the company if the transfer had not been made and all penalties incurred by reason of any offence against the provisions of any byelaws or regulations of the company previously to the transfer may be sued for and all offences committed against

such provisions previously to the transfer may be prosecuted by the Corporation in such or the like manner to all intents and purposes as such penalties might have been sued for or such offences prosecuted if the transfer had not taken place and all moneys payable to the company prior to the transfer may be sued for and recovered by the Corporation in the same manner in all respects as the same might have been sued for and recovered by the company if this Act had not been passed. A.D. 1919.

(2) This section shall not apply to any proceedings relating to the following debts and liabilities (that is to say):—

- (A) The amount due to the shareholders of the company in respect of their several shares in the company and the dividend accrued due thereon up to the day of transfer;
- (B) Any moneys borrowed and owing by the company on mortgage or otherwise on capital account (other than the debentures of the company) and the interest accrued due thereon up to the transfer; and
- (C) Any debts or liabilities to be discharged by the company under the provisions contained in the First Schedule.

9. Except as otherwise provided by this Act all agreements contracts deeds and other instruments affecting the company and in force at the day of transfer shall after that day be as binding and of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the company the Corporation had been a party thereto. Contracts to be binding on Corporation.

10. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same and the like matter for or against the Corporation. Books &c. to remain evidence.

11.—(1) From and after the day of transfer the company shall continue to exist only for the purpose of paying their debts and liabilities (other than such as are to be discharged or taken over by the Corporation) and of receiving and recovering the sums payable to the company under the provisions contained in the First Schedule and distributing or otherwise applying the same and of winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office Company to wind up affairs.

A.D. 1919. at the day of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

(2) As soon as may be practicable after the day of transfer the directors of the company shall proceed to wind up the affairs of the company and shall pay the debts and liabilities of the company (other than such as are to be discharged by the Corporation) and subject to the payment thereof shall distribute the surplus moneys of the company to and among the several persons who at the day of transfer are the registered holders of shares in the capital of the company or their respective executors administrators or assigns in proportion to the number of shares held by them respectively and for the purpose of such distribution the several persons whose names shall appear in the books of the company at the day of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the company and the receipt in writing of such persons or of their executors administrators or assigns or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the share or interest in respect whereof such payment is made.

(3) Where the directors of the company are for six months after the day of transfer unable after diligent inquiry to find the person to whom any money is payable or where any money is payable to a person who or whose committee cannot give an effectual receipt for the same the directors may pay the money as nearly as may be in manner provided for payment of money into court by any Act for the time being in force for the relief of trustees and such Act shall apply with all necessary modifications to such money and where the amount does not exceed five hundred pounds the directors may pay the same into the county court of Lancashire holden at Blackpool and every such

payment into court shall effectually discharge the company and directors from all further liability with respect to such money. A.D. 1919.

(4) Upon the purposes specified in this section being fulfilled the company shall by virtue of this Act be dissolved.

12.—(1) Subject to the provisions of this Act the provisions of the Blackpool and Fleetwood Tramroad Act 1896 mentioned in Part I. of the Third Schedule shall as from the transfer be repealed and the provisions of that Act and of the Blackpool and Fleetwood Tramroad Act 1898 mentioned in Part II. of that schedule shall be repealed as from the dissolution of the company. Partial repeal of company's Acts.

(2) As from the transfer the provisions of the Blackpool and Fleetwood Tramroad Acts 1896 and 1898 other than those mentioned in the Third Schedule shall apply and have effect as if the Corporation were therein mentioned instead of the company and the Corporation may maintain and may place and run carriages on work and use and may demand and take tolls and charges in respect of the tramroad and tramway transferred to them.

(3) In its application to the Corporation section 19 of the Tramways Act 1870 as incorporated with the Blackpool and Fleetwood Tramroad Act 1896 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section.

13.—(1) The company's undertaking when acquired by the Corporation shall for the purposes of section 57 (Application of tramway revenue) of the Blackpool Improvement Act 1901 and of the section of this Act whereof the marginal note is “Power to borrow” form part of the Corporation's tramway undertaking. Company's undertaking to form part of Corporation's undertaking.

(2) Nothing contained in this Act shall alter or affect the assessment of the tramroad transferred to the Corporation in pursuance thereof under subsection (1) (b) of section 211 (Assessment &c. of general district rate) of the Public Health Act 1875.

14.—(1) When the Corporation have purchased the company's undertaking and so long as they are working the same they shall make provision for through tolls and charges upon As to through fares.

A.D. 1919. the tramways of the Corporation and the company's undertaking and shall issue through tickets from and to points on those tramways to and from points on the company's undertaking.

(2) For the purpose of such tolls and charges the said tramways and undertaking shall be considered as one undertaking and in estimating the maximum amount of such through tolls and charges the maximum charge for each portion of the entire distance shall be calculated at the maximum rate which according to the scale of maximum charges applicable to such portion would be chargeable for the whole journey.

Council to
consent to
carriage of
goods and
construction
of sidings.

15.—(1) In the event of the Corporation seeking power to enable them to carry goods on the company's undertaking on payment of reasonable tolls rates and charges the council shall not oppose any application by the Corporation for such power. Provided that goods traffic shall not unduly interfere with passenger traffic on such undertaking.

(2) The council shall consent to the construction by the Corporation of sidings and other works in connexion with the company's undertaking upon land belonging to or occupied by the Corporation and situated in the district of the council and also to the construction in a position and manner to be reasonably approved by the council and the maintenance by the Corporation to the reasonable satisfaction of the council of a single or double line of rails across Copse Road and Copse Brook to connect the sidings so constructed with the tramroad.

For pro-
tection of
council.

16. The following provisions for the protection and benefit of the council shall unless otherwise agreed in writing between the Corporation and the council apply and have effect (that is to say):—

(1)—(A) If within twelve months next after the expiration of a period of twenty-one years from the date of the passing of this Act the council shall give notice in writing to the Corporation of their intention to promote a Bill in the next available session of Parliament to authorise them to purchase and work or lease such part of the tramroad of the company as is situated in the district of the council and all sidings and other works constructed by the Corporation subsidiary thereto (which part of the tramroad and works are in this section referred to as "the tramroad") and shall promote such Bill the Corporation shall not oppose such Bill except for the

purpose of obtaining the insertion of clauses for their protection and except so far as may be necessary in order to secure the carrying out of the terms contained in this section; A.D. 1919.

- (B) Any Bill so promoted by the council shall provide that within one year after the passing thereof the council shall purchase and the Corporation shall sell to the council the tramroad at the fair market value thereof as a going concern but without any allowance in respect of compulsory purchase or severance;
 - (C) The council shall if requested so to do by the Corporation by notice in writing to be given within three months after the passing of the Act authorising the purchase grant to the Corporation and the Corporation in such case shall accept a lease of the tramroad for a term of twenty-one years from the date of purchase of the tramroad by the council upon terms which shall provide for the payment annually by the Corporation to the council of such a sum as shall indemnify the council against the annual amounts due in respect of interest and sinking fund on the purchase money Provided that in each year during the continuance of the term of such lease the Corporation shall pay to the council one-third of the net profits (if any) attributable to the tramroad in respect of that year or if there be no such profits the council shall pay to the Corporation one-third of the net deficit (if any) so attributable after in each case making reasonable allowance for renewals the Corporation maintaining the tramroad in a proper state of repair;
 - (D) If the tramroad is not purchased by the council under the provisions of this subsection all rights conferred by this Act upon the council with regard to the purchase of the tramroad shall cease and determine;
 - (E) The Corporation shall at all times during the period of twenty-one years from the date of the passing of this Act maintain the tramroad in good order and condition:
- (2) The Corporation shall as soon as reasonably practicable after the completion of the purchase of the company's undertaking plant and at all times thereafter

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whilst they own and work the tramroad maintain in a good and proper condition between the rails of the tramroad and Radcliffe Road a privet or thorn hedge to the reasonable satisfaction of the council and if and whenever Radcliffe Road is continued in a southerly direction alongside the tramroad and made fit for traffic the Corporation shall similarly and to the like satisfaction plant and maintain a privet or thorn hedge between such continuation and the tramroad :

- (3) The Corporation shall permit the public at all times to use the crossings over the tramroad from and to Radcliffe Road and Copse Road :
- (4) The Corporation shall provide stopping-places on the tramroad at such points as may be reasonably required by the council :
- (5) The Corporation shall provide and maintain to the reasonable satisfaction of the council an adequate service of cars in both directions between Fleetwood and Cleveleys :
- (6) The Corporation shall to the reasonable satisfaction of the council provide and maintain a winter service of cars in both directions between Fleetwood and Blackpool equal to that to be provided by them between the Gynn Inn and Cleveleys if such service is warranted by the traffic demands :
- (7) The fares charged by the Corporation on the tramroad for any journey within or partly within the district of the council shall not exceed the fares charged on the tramroad for journeys of similar length within or partly within the borough :
- (8) The Corporation shall provide to the reasonable satisfaction of the council at suitable hours on every working day a service of cars available for artisans mechanics and daily labourers on the portion of the undertaking of the company which is within the district of the council at fares not exceeding the rate per mile for the time being charged by the Corporation for a similar service on the tramroad within the borough but in no case at a rate

exceeding one penny per mile unless expressly authorised by the Board of Trade or Parliament: A.D. 1919.

(9) The council may at their own expense at such places as they may reasonably select but subject in other respects to the reasonable approval of the Corporation make crossings over the tramroad which crossings may at all times be used by the public for all kinds of traffic:

(10) If any question or dispute shall arise between the Corporation and the council as to the true intent or meaning of the provisions of this section or of the last preceding section of this Act or as to anything to be done or not to be done thereunder whether as to the amount of purchase money for the tramroad or otherwise the same shall be referred to a single arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either of them (after notice in writing to the other) by the Board of Trade and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference.

17. The right of the council under the provisions of section 43 of the Tramways Act 1870 as modified by the Blackpool and Fleetwood Tramroad Act 1896 to purchase the existing tramway in the district of the council shall not be exercised by the council until after the expiration of a period of twenty-one years from the passing of this Act (the expiration of which period shall in substitution for the period of thirty years mentioned in section 2 of the Blackpool and Fleetwood Tramroad Act 1896 be deemed for the purposes of section 43 of the Tramways Act 1870 to be "the expiration of " a period of twenty-one years from the time when such " promoters were empowered to construct such tramway") and in the event of such purchase by the council of the said tramway the council shall if requested so to do by the Corporation forthwith grant to the Corporation and the Corporation shall accept a lease of the said tramway for a term of twenty-one years or such other term of years as shall expire at the same time as the lease (if any) of the tramroad and upon and subject to the conditions as to payment and other matters mentioned in the last preceding section of this Act relative to the lease (if any) of the tramroad so far as such conditions are applicable thereto.

As to purchase by council under Tramways Act 1870.

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PART III.

NEW TRAMWAYS.

Power to
make tram-
ways.

18.—(1) Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways hereinafter described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turn-outs crossings cross-overs passing-places posts poles brackets wires works and conveniences connected therewith.

(2) The tramways hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Tramway No. 1 (double line 1·87 chains in length) commencing in Queen's Drive by a junction with the tramway therein at a point 44 feet or thereabout south-west of its present termination and terminating in King's Drive by a junction with the tramway therein at a point 78 feet or thereabout north-west of the south-westerly corner of the Gynn Inn:

Tramway No. 2 (1 furlong 5·42 chains in length whereof 6·82 chains will be double line and 8·60 chains will be single line) commencing in the Carriage Drive by a junction with the tramway therein at a point 72 feet or thereabout south of the south-east corner of the Hotel Metropole proceeding along Queen Square and Queen Street and terminating in Dickson Road by a junction with Tramway No. 6 at a point 24 feet or thereabout north of Queen Street:

Tramway No. 3 (double line 1·29 chains in length) commencing in the Carriage Drive by a junction with the tramway therein at a point opposite to Queen Square and terminating by a junction with Tramway No. 2 at a point 39 feet or thereabout east of the Carriage Drive:

Tramway No. 4 (single line 1·17 chains in length) in Queen Street commencing by a junction with Tramway No. 2 at a point 50 feet or thereabout west of Dickson Road and terminating in Dickson Road by a junction with Tramway No. 7 at a point 27 feet or thereabout south of Queen Street:

Tramway No. 5 (single line 4·55 chains in length) commencing in Queen Street by a junction with Tramway No. 2 at a point 33 feet or thereabout west of May Bell Avenue proceeding along May Bell Avenue across Talbot Road and terminating in Abingdon Street by a junction with a tramway therein at a point 40 feet or thereabout south of Talbot Road: A.D. 1919.

Tramway No. 6 (double line 3·26 chains in length in substitution for the existing single line) in Dickson Road commencing at a point 18 feet or thereabout south of Springfield Road and terminating at Queen Street:

Tramway No. 7 (4·35 chains in length whereof 3·17 chains will be double line and 1·18 chains will be single line) commencing in Dickson Road at the termination of Tramway No. 6 and terminating in Talbot Road by a junction with the tramway therein at a point 50 feet or thereabout west of Dickson Road:

Tramway No. 8 (single line 1·20 chains in length) commencing in Dickson Road by a junction with Tramway No. 7 at a point 50 feet or thereabout north of Talbot Road and terminating in Talbot Road by a junction with the tramway therein at a point 50 feet or thereabout east of Dickson Road:

Tramway No. 9 (single line 1 furlong 9·90 chains in length) commencing in Princess Street by a junction with the tramway therein at a point 45 feet west of Blundell Street proceeding along Blundell Street and Hesketh Road and terminating in Lytham Road by a junction with the tramway therein at a point 40 feet or thereabout north-west of Hesketh Road.

19. The tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of that period the powers granted by this Act to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of works.

20.—(1) The tramways and works authorised by the section of this Act whereof the marginal note is "Power to make tramways" shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the sections Works to form part of tramway undertaking of Corporation.

A.D. 1919. of the Blackpool Improvement Act 1901 hereinafter mentioned and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof and for the time being in force shall with the necessary modifications extend and apply to all the said tramways and works as if they had been authorised by Part II. of the said Act of 1901.

(2) The sections hereinbefore referred to are—

Section 9 (Tramways and tramroads to form part of tramway undertaking);

Section 10 (Incorporating sections of Act of 1898 and Act of 1899); and

Section 13 (Cheap fares for labouring classes).

(3) Provided that—

(A) The provisions of section 27 (For protection of Postmaster-General) of the Blackpool Improvement Act 1905 shall extend and apply to all the said tramways and works in lieu of the provisions of section 26 (For protection of Postmaster-General) of the Blackpool Improvement Act 1898 and shall also extend and apply to the tramroad and tramway transferred to the Corporation under the provisions of this Act;

(B) No post or other apparatus shall be erected on any carriageway in connexion with the tramways authorised by this Act without the consent of the Board of Trade.

(4) The provisions of section 60 (Use of tramway posts by Postmaster-General) of the Blackpool Improvement Act 1917 shall extend and apply to the tramways authorised by this Act and to the tramway transferred to the Corporation under the provisions of this Act.

For protection of Lancashire and Yorkshire and London and North Western Railway Companies.

21. For the protection of the Lancashire and Yorkshire Railway Company and the London and North Western Railway Company (in this section called “the companies”) the following provisions shall unless otherwise agreed between the Corporation and the companies apply and have effect (that is to say):—

(1) In working the tramways by this Act authorised and specified in the first column of the following table no tramcar or other carriage or vehicle used thereon shall without the consent in writing of the companies

be stopped or permitted to be stopped between the points respectively named in the second column of such table—

No. of Tramway.	Portions of tramway on which tramcars or other carriages or vehicles used thereon are not to be stopped.
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No. 2 Between the termination of the tramway and
a point 24 yards south-west thereof;

No. 4 The whole tramway ;

No. 7 Between the commencement of the tramway
and a point 12 yards south-east thereof ;

Between the termination of the tramway and
a point 28 yards north-west thereof ;

No. 8 The whole tramway :

(2) No brackets wires or apparatus shall without the previous consent in writing of the companies be attached to any building or other work belonging to those companies :

(3) The position of all posts standards and apparatus erected or constructed by the Corporation for the purposes of the said Tramways Nos. 4 7 and 8 on the east side of Dickson Road between Upper Queen Street and Talbot Road shall be such as the companies may reasonably approve :

(4) If any post standard or other apparatus becomes owing to any alteration or improvement of the Talbot Road Station or otherwise in the opinion of the companies an obstruction the Corporation shall alter the position thereof in such manner as the companies direct :

(5) If any difference arises under this section between the Corporation and the companies the same shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

22. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection of the Fylde Water Board (in this section referred to as "the board") shall have effect (that is to say) :—

For pro-
tection of
Fylde Water
Board.

(1) The board are hereby empowered if they deem necessary by reason of any works or improvements of the Corporation authorised by this Act to alter the

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situation of or relay any water mains valves hydrants and appliances and the Corporation shall pay to the board the cost of such alteration or relaying:

- (2) The board shall (unless otherwise agreed) serve notice upon the Corporation with a plan showing the required alteration or relaying of water mains valves hydrants and appliances and the board shall within fourteen days after the service of such notice and plan commence to execute such alteration or relaying and shall complete the same with all reasonable dispatch:
- (3) The board are hereby empowered if they deem necessary by reason of any works or improvements of the Corporation authorised by this Act to alter or relay any service pipes and remove stopcocks stopcock-boxes meters and meter-boxes from their present positions to similar positions on the new line of footpath and the Corporation shall pay to the board the cost of such alteration or relaying:
- (4) The Corporation shall make compensation to the board for any damage done to the water mains valves hydrants service pipes stopcocks stopcock-boxes meters and meter-boxes and other appliances belonging to the board by reason or in consequence of the works and improvements of the Corporation and any dispute as to the fact of damage or the amount of compensation shall be referred to and determined by an engineer to be agreed on between the Corporation and the board or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

PART IV.

STREET IMPROVEMENT.

Power to
construct
street im-
provement.

23.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the work hereinafter described together with all necessary or proper works improvements junctions connexions approaches sewers drains and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference

as they may require for the construction of such work or for the purpose of providing space for the erection of buildings adjoining or near to such work. A.D. 1919.

(2) The work hereinbefore referred to and authorised by this section will be situate in the borough and is---

A widening of the carriage drive on the easterly side thereof commencing at its junction with Talbot Square and terminating at its junction with Springfield Road.

24. In the construction of the work authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding three feet either upwards or downwards. Limits of deviation.

PART V.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

25.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay all money so borrowed within the respective periods mentioned in the third column of the said table (namely):— Power to borrow.

1.	2.	3.
Purpose.	Amount.	Period for Repayment.
(A) For and in connexion with the purchase of the company's undertaking the payment of any sums payable to the company their directors or officers the payment of the costs charges and expenses of the Corporation of or connected with the transfer and the redemption of the company's debentures.	Such sum as may be requisite.	30 years from the date or dates of borrowing.
(B) For and in connexion with the construction of the tramways authorised by this Act.	£ 7,400	30 years from the date or dates of borrowing.
(C) For and in connexion with the electrical equipment of those tramways.	1,100	20 years from the date or dates of borrowing.
(D) For and in connexion with the purchase of lands for and the construction of the street improvement authorised by this Act.	7,000	50 years from the date or dates of borrowing.
(E) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	5 years from the passing of this Act.

A.D. 1919.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and may with the consent of the Local Government Board borrow such further money as may be necessary for any purposes of this Act other than the purposes of that undertaking.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed.

(3) In order to provide for the repayment of moneys borrowed under this section and the payment of interest thereon the following funds rates and revenues of the Corporation are hereby made specially liable and such moneys are hereby primarily chargeable accordingly (that is to say):—

As regards purposes (A) (B) (C) and (E) the revenue of the tramway undertaking and the borough fund and borough rate ;

As regards purpose (D) the district fund and general district rate or the revenue of the tramway undertaking or the said fund and rate and that revenue in such proportions as the Corporation may by resolution determine ;

As regards money borrowed with the consent of the Board of Trade or of the Local Government Board such fund rate or revenue as may be prescribed by the Board with whose consent the money is borrowed.

Rate of
accumula-
tion of pay-
ments to
sinking
fund.

26. Where under the provisions of any Act of Parliament or of any order confirmed by or having the effect of an Act of Parliament or of any order made under any such Act or order the Corporation are empowered or required to form a sinking fund for the payment off of money borrowed then if the sinking fund is an accumulating sinking fund the rate for the investment of the fund on which the amount of the annual payments to the fund is based shall be for a period of ten years from the passing of this Act three pounds ten shillings per centum per annum and in respect of money borrowed thereafter three pounds per centum per annum or in either case such higher rate as the Local Government Board may from time to time approve.

27.—(1) The Corporation shall have power—

A.D. 1919.

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

Power to re-borrow.

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) The following provisions are hereby repealed but without prejudice to anything done or suffered to be done thereunder respectively (namely):—

Section 93 of the Blackpool Improvement Act 1879;

Sub-division (g) of Art. III of the Order relating to

Blackpool confirmed by the Local Government Board's

Provisional Orders Confirmation (No. 7) Act 1888;

Section 130 of the Blackpool Improvement Act 1893;

Article VIII of the Blackpool Order (No. 2) 1894;

Section 45 of the Blackpool Improvement Act 1905;

A.D. 1919.

And the provision of any other Act so far as it applies to the money borrowed thereunder the provisions of any of the sections repealed by this subsection.

Incorporation of sections of existing Acts.

28.—(1) The following sections of the local Acts in force in the borough shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say):—

The Blackpool Improvement Act 1893—

Section 114 (Correction of errors omissions &c.);

Section 117 (Power to take easements &c. by agreement):

The Blackpool Improvement Act 1899—

Section 60 (Audit of accounts):

The Blackpool Improvement Act 1901—

Section 26 (Owners may be required to sell parts only of certain lands and buildings);

Section 79 (Recovery of penalties &c.);

Section 80 (Inquiries by Local Government Board):

The Blackpool Improvement Act 1905—

Section 54 (Expenses of execution of Act):

The Blackpool Improvement Act 1910—

Section 20 (Application of section 265 of Public Health Act 1875):

The Blackpool Improvement Act 1917—

Section 55 (Subsidiary works);

Section 56 (Power to alter steps areas pipes &c.);

Section 57 (For protection of telegraphic lines of Postmaster-General);

Section 61 (Temporary stoppage of streets);

Section 63 (Compensation in case of recently acquired interest);

Section 64 (Costs of arbitration &c. in certain cases);

Section 65 (Period for compulsory purchase of lands);

Section 66 (Power to purchase additional lands by agreement);

Section 67 (Power to retain sell &c. lands);

Section 80 (Judges not disqualified).

(2) Provided that—

(A) The said section 26 of the Act of 1901 shall for the purposes of such incorporation apply in respect of

the premises numbered 1 and 6 to 35 (all inclusive) on the deposited plans and those premises shall be the scheduled properties within the meaning of that section : A.D. 1919.

- (B) The said section 63 of the Act of 1917 shall for the purposes of such incorporation have effect as if the twentieth day of November nineteen hundred and eighteen were therein mentioned instead of the twentieth day of November nineteen hundred and sixteen.

29. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of money to be borrowed for that purpose. Costs of Act.

A.D. 1919. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PROVISIONS RELATING TO THE SALE OF THE COMPANY'S UNDERTAKING TO THE CORPORATION.

1. As on and from the 1st day of January 1918 the company shall sell and the Corporation shall purchase the whole of the property and assets of the company whatsoever and wheresoever exclusive of—

(A) sufficient cash to pay the declared dividend for the half-year ended the 31st day of December 1917 on the company's share capital; and

(B) all invested funds standing in the name of the company on the 31st day of December 1917 particulars of which investments are as follows and the income of those investments (namely)—

£	s.	d.	
10,000	0	0	Lancashire and Yorkshire Railway preference stock 1908;
5,000	0	0	London and North Western Railway consolidated preference stock;
5,000	0	0	Great Western Railway four per cent. debentures;
21,000	0	0	Five per cent. war stock;
1,052	12	6	Five per cent. war stock.

£42,052 12 6

2. The consideration for the said sale and purchase shall be the sum of 235,000*l.* whereof the sum of 10,000*l.* has been invested by the Corporation in the joint names of the mayor of the borough and the secretary of the company and the securities therefor have been deposited with the Blackpool branch of the London Joint City and Midland Bank Upon the completion of the purchase the said securities shall be transferred to the company and shall be accepted by them as equivalent to the sum of 10,000*l.* In addition to the purchase money the Corporation shall pay to the company the sum of 13,758*l.* 7*s.* 1*d.* representing the purchase price of 14,000*l.* six months Treasury bills invested by the company out of the profits earned in the year 1917 but since realised to meet current liabilities.

A.D. 1919.

—

3. The said sale shall be subject to the agreements entered into by the company in pursuance of the Acts relating to the company's undertaking or any of them and also subject to the mortgage debentures which have been issued by the company and which are hereinafter called "the debentures" for securing principal moneys amounting in the aggregate to 35,000*l.* bearing interest at the rate of 5*l.* per centum per annum charged upon the undertaking of the company and redeemable on the 1st day of July 1928 on six months' notice in writing to the registered holders thereof and to the payment by the Corporation of the principal moneys and interest secured by the debentures.

4. The company shall out of the said purchase moneys and/or the excepted cash and funds retained by them as aforesaid discharge all debts and liabilities outstanding on the 31st December 1917 including the said half-yearly dividend if and so far as the same has not been paid but excluding all capital moneys and interest secured by the debentures and shall hold harmless the Corporation from and against all actions and proceedings costs damages expenses claims and demands for or in respect thereof.

5. The Corporation shall duly pay the principal moneys secured by the debentures as and when they become payable and in the meantime shall duly and punctually pay the interest thereon and shall indemnify the company from all actions proceedings claims and demands in respect of such principal moneys and interest or any part thereof.

6. The Corporation shall grant to the company and the company shall accept a demise of the tramways privileges and premises comprised in the indenture of lease hereinafter mentioned for a further term of two years commencing immediately upon the expiration of the term created by such indenture at the like rent and subject to and with the benefit of the like covenants conditions and provisions as are reserved by and contained in such indenture but on the completion of the said purchase the said further term shall be surrendered to the Corporation. The said indenture is an indenture of lease dated the 12th day of September 1899 whereby the Corporation demised to the company for the term and subject to the payment of the rent thereby reserved and to the performance and observance of the covenants and conditions on the part of the lessees therein contained certain tramways or portions of tramways situate in Queen's Drive Warbreck Road and Dickson Road in the borough constructed by the Corporation under the powers and provisions of the Blackpool Corporation Tramways Order 1896.

7. As from the 31st day of December 1917 and until the completion of the purchase the company shall be deemed to have carried

A.D. 1919. on and shall continue to carry on their undertaking in the same manner in all respects as heretofore on behalf of but without interference on the part of the Corporation and all surplus revenue remaining after payment of yearly or half-yearly dividends to the company's shareholders calculated at the rate of 6l. 10s. per centum per annum free of income tax on the nominal amount or value of the shares held by them and the interest on the debentures (which dividends and interest the company shall be at liberty to pay) and all working expenses rents rates taxes insurance premiums and generally all outgoings debts and liabilities including all claims for damages in respect of accidents occurring after the 31st day of December 1917 for which the company are liable in law shall be credited to the Corporation and set off pro tanto against the said purchase price on completion. In the event however of it being proved to the satisfaction of the Corporation or in case of dispute to the satisfaction of a single arbitrator to be appointed by the President of the Institute of Chartered Accountants on the application of either party that a loss has been incurred by the company during the period from the 31st day of December 1917 to the completion of the purchase the amount of such loss shall be added to the purchase price and paid by the Corporation and such reference shall be deemed to be a submission to arbitration within the meaning of the Arbitration Act 1889 and that Act shall apply accordingly.

8. The Corporation shall on completion pay to the directors of the company their executors administrators or assigns the sum of 4,000l. as full compensation and satisfaction to them for loss of fees and other emoluments (if any) and to the present general manager and secretary (John Cameron) his executors administrators or assigns such sum as compensation for loss of office and salary as shall be agreed upon between the Corporation and the said John Cameron or failing agreement as shall be awarded by the arbitrator to be appointed as mentioned in paragraph 7 hereof.

9. The Corporation shall without investigation objection or requisition accept the title of the company to its lands buildings easements rights privileges and other premises to be sold by the company to the Corporation in pursuance of this Act.

10. The completion shall take place within six months after the passing of this Act.

11. The company shall not borrow any further moneys on mortgage of their undertaking or create and issue any further debentures or debenture stock without the consent of the Corporation.

THE SECOND SCHEDULE.

A.D. 1919.

FORM OF DEED OF TRANSFER OF COMPANY'S UNDERTAKING.

Pursuant and subject to the provisions of the Blackpool Improvement Act 1919 and in consideration of pounds the Blackpool and Fleetwood Tramroad Company hereby grant convey and assign to the mayor aldermen and burgesses of the borough of Blackpool the undertaking property and assets of the company To hold the same unto and to the use of the said mayor aldermen and burgesses their successors and assigns And the said mayor aldermen and burgesses do hereby accept the same accordingly In witness whereof the parties hereto have hereunto affixed their respective common seals the day of nineteen hundred and

THE THIRD SCHEDULE.

PART I.

ENACTMENTS REPEALED AS FROM THE TRANSFER.

Section.	Marginal Note.
	Blackpool and Fleetwood Tramroad Act 1896.
7	Arrangements as to works in Blackpool.
8	For the protection of the Corporation.
9	Confirming agreement with Corporation.
33	Restriction on taking houses of labouring class.
53	Period for completion of works.
54	Deposit money not to be repaid until line opened.
55	Application of deposit.
56	Release of remainder of money deposited.
65	For protection of the Postmaster-General.
68	Company may take a lease of tramways from Corporation.
83	Interest not to be paid on calls paid up.
84	Deposits for future Bills not to be paid out of capital.
The Second Schedule.	

A.D. 1919.

PART II.

ENACTMENTS REPEALED AS FROM THE DISSOLUTION OF THE
COMPANY.

Section.	Marginal Note.
Blackpool and Fleetwood Tramroad Act 1896.	
5	Company incorporated.
14	Capital.
15	Shares not to be issued until one fifth part thereof shall have been paid up.
16	Calls.
17	Power to borrow.
19	Debenture stock.
20	Priority of mortgages over other debts.
24	Application of moneys.
25	First ordinary meeting.
26	Number of directors.
27	Qualification of directors.
28	Quorum for meeting of directors.
29	First directors Election of directors.
Blackpool and Fleetwood Tramroad Act 1898.	
2	Incorporation of general Acts.
3	Interpretation.
5	Power to raise additional capital.
6	Calls and instalments.
7	Restriction as to votes in respect of preferential shares or stock.
8	Receipts on behalf of incapacitated persons.
9	Power to borrow.
11	Debenture stock.
12	Priority of principal moneys secured by existing mortgages.
15	Application of moneys.
16	Interest not to be paid on calls paid up.
17	Deposits for future Bills not to be paid out of capital.

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